A practical review before the next step

42 checks for a competent Committee. Use alongside the POSH Act, applicable service/sector rules and the actual institutional record.

How to use this edition

Review the relevant stage, mark Checked / Follow-up / N/A and add a secure record reference. A tick is a review prompt, not certification. Own unresolved items in the action register on page 8. Complete identifying details only in secure institutional records.

Keep the two principal routes distinct

Section 10 conciliation requires the aggrieved woman's request before inquiry and cannot be based on monetary settlement. Otherwise use the lawful inquiry/report route. Jurisdiction, referral, absence, breach and other exceptions need reasoned action and a tracked next step.

Key statutory triggers to verify

Inquiry: within 90 days under Section 11(4); the provision does not expressly define commencement. Record the verified initiation event and basis separately from the first meeting.
Report: within 10 days from completion of inquiry, Section 13(1); make it available to concerned parties.
Action: within 60 days of receipt of recommendations by the employer or District Officer, Section 13(4).

Do not mix calendar and working-day periods

Where Central Rule 7 applies: send complaint copy within 7 working days of receipt; reply within at most 10 working days from actual receipt of prescribed documents. Verify the working calendar. This PDF performs no date calculation or automatic holiday extension.

Complaint timing and appeal need their own review

Section 9 ordinarily allows three months from incident or last incident in a series, with a reasoned extension of up to three further months where statutory conditions are met. Section 18 provides appeal within 90 days of recommendations; verify the forum, applicable rules and remedy promptly.

Know the limits

A reference aid, not personalised advice, legal vetting, training, filing, an inquiry record or an outcome guarantee. Check current law and directions. Interim relief does not itself pause statutory periods. The Committee remains responsible for decisions and signed records.

Receipt, forum and Committee

Begin with authority and a usable complaint, without prejudging the merits.

01. Assist a complaint into writing

Where the woman cannot make a written complaint, provide reasonable assistance. Keep her account and confirmation distinct from staff assumptions.

Basis: Section 9(1)

☐ Checked ☐ Follow-up ☐ N/A Record ref: _____

02. Check the complaint chronology

Review incident or last-incident dates, receipt date and any reasoned extension. Do not automatically reject an incomplete complaint or invent a filing date.

Basis: Section 9

☐ Checked ☐ Follow-up ☐ N/A Record ref: _____

03. Verify the competent forum

Check workplace, employment and respondent relationship; IC/LC jurisdiction and any employer complaint. Record the lawful referral and receiving contact if required.

Basis: Sections 4, 6 and 11

☐ Checked ☐ Follow-up ☐ N/A Record ref: _____

04. Check Committee constitution

Verify applicable appointment, eligibility, gender composition and term requirements for the actual IC or LC. An account is not an appointment.

Basis: Sections 4 and 7

☐ Checked ☐ Follow-up ☐ N/A Record ref: _____

05. Review conflicts and impartiality

Record disclosed conflicts and how they will be resolved before the affected decision or hearing. Avoid taking over either party's presentation.

Basis: Fair procedure; applicable rules

☐ Checked ☐ Follow-up ☐ N/A Record ref: _____

06. Register and acknowledge receipt

Use a secure reference and receipt acknowledgement. Distinguish acknowledgement from acceptance of jurisdiction, findings or proof of allegations.

Basis: Administrative control

☐ Checked ☐ Follow-up ☐ N/A Record ref: _____

07. Own any unresolved issue

Identify the responsible person, action, review date and secure record reference. Follow referral through receipt and lawful next action rather than closing a blank route.

Basis: Follow-up control

☐ Checked ☐ Follow-up ☐ N/A Record ref: _____